

**SUBSTITUTE FOR
HOUSE BILL NO. 5233**

A bill to require certain employers to provide paid military leave for certain members of those employers; and to provide certain conditions for the use of paid military leave.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1. This act may be cited as the "military leave for first
2 responders act".

3 Sec. 3. As used in this act:

4 (a) "Employer" means either of the following:

5 (i) An organized fire department.

6 (ii) A law enforcement agency.

7 (b) "Law enforcement agency" includes all of the following:

8 (i) The department of state police.

9 (ii) The county sheriff's office.



1 (iii) The police department of a local unit of government.

2 (c) "Member" means a full-time member of an organized fire
3 department or law enforcement agency. Member does not include a
4 part-time, volunteer, or paid on-call member.

5 (d) "Military leave" means time off from work for the purpose
6 of doing either of the following as it relates to service in the
7 reserve components of the United States Armed Forces:

8 (i) Performance of duty, including, but not limited to, a
9 qualified member's compliance with any order to report for any
10 reason or to deploy.

11 (ii) Training.

12 (e) "Organized fire department" means that term as defined in
13 section 1 of the fire prevention code, 1941 PA 207, MCL 29.1.

14 (f) "Qualified member" means a full-time member who is
15 enlisted in the reserve components of the United States Armed
16 Forces. Qualified member does not include a part-time, volunteer,
17 or paid on-call member.

18 (g) "Reserve components of the United States Armed Forces"
19 means all of the following:

20 (i) The Army National Guard of the United States.

21 (ii) The Army, Navy, Marine Corps, Air Force, and Coast Guard
22 reserves.

23 (iii) The Air National Guard of the United States.

24 (h) "Year" means a calendar year or a portion of a calendar
25 year.

26 Sec. 5. (1) At the beginning of each year, an employer shall
27 provide each qualified member of the employer with not less than 26
28 days of paid military leave.

29 (2) An employer shall provide a qualified member or member



described in section 7(4) using paid military leave both of the following:

(a) Wages at a pay rate that is equal to the member's regular pay rate.

(b) If the member is a member of a bargaining unit covered by a collective bargaining agreement to which the employer is a signatory, all contractually required fringe benefits and accruals normally provided in the course of the member's employment.

(3) An employer shall not do either of the following:

(a) Allow a qualified member to carry over any unused paid military leave from 1 year to the next year.

(b) Provide financial or other reimbursement to a qualified member for any unused paid military leave.

(4) Any unused paid military leave that an employer provides to a qualified member lapses at the end of the year in which the paid military leave is provided.

Sec. 7. (1) If a qualified member requests to use paid military leave, the qualified member must provide to the qualified member's employer a copy of the military orders that require the member to be absent from work.

(2) If a qualified member needs to use military leave for 10 or more consecutive days, but less than 20 consecutive days, the member shall make a request to the qualified member's employer for the military leave not less than 14 days before the date the military leave begins.

(3) If a qualified member needs to use military leave for 20 or more consecutive days, the member shall make a request to the qualified member's employer for the military leave as many days before the date the military leave begins as is reasonably



1 possible.

2 (4) If a member is not a qualified member, but receives an
3 order for a preinduction physical examination to enlist in the
4 reserve components of the United States Armed Forces, the member's
5 employer shall provide paid military leave to the member so the
6 member can attend the examination. A member described in this
7 subsection shall provide to the member's employer a copy of the
8 orders to attend the preinduction examination.

9 (5) A qualified member may, but is not required to, use any
10 annual leave the qualified member has for an absence due to
11 military service.

12 (6) This act does not diminish or otherwise reduce wages or
13 fringe benefits available to a member using military leave who is
14 covered by a collective bargaining agreement between the member's
15 bargaining representative and an employer. Benefits provided under
16 this act are intended to establish the minimum required benefit
17 level to be provided a qualified member using military leave.

18 Sec. 9. (1) If an employer or a bargaining unit that
19 represents a member is a party to a collective bargaining agreement
20 that meets both of the following conditions, this act applies to
21 the parties to the agreement beginning on the expiration date
22 stated in the agreement or the effective date of a new collective
23 bargaining agreement entered into between the parties, whichever is
24 earlier:

25 (a) The agreement is in effect on the effective date of this
26 act.

27 (b) The agreement conflicts with this act.

28 (2) An employer shall not require a member to waive or limit a
29 right granted under this act. An agreement to waive a right under



1 this act is void and unenforceable.